

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 24, 2026
8:30 AM/1:30 PM

12. CELESTE SPINA V. ANTHONY CATALANO

24FL0448

On June 12, 2026, Respondent filed a Request for Order (RFO) seeking to vacate the June 4, 2026 Judgment and enter a different judgment. Or, in the alternative, reconsider/clarify the June 4th Judgment. All required documents were served by mail on June 15, 2026.

Petitioner filed her Responsive Declaration to Request for Order on September 3, 2026. It was served by mail on September 14th. The court finds this to be late served pursuant to Civil Procedure section 1005(b), which states all opposition papers are to be filed and served at least nine court days before the hearing date. Section 12c states, “[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12.” Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made September 11th the last day to serve the responsive declaration. Because it was late-served the court has not read or considered this document.

Respondent is requesting the court either vacate, reconsider, or clarify its orders regarding (1) the \$10,000 valuation of Little Hurricane, LLC; (2) the \$33,000 valuation of *Watts* charges; and (3) vacate the intellectual property income-sharing order and replace it with a workable division as set forth in Section III.C.4 of Respondent’s motion. The Judgment was entered on June 4, 2026 as a result of the March 16, 2026 trial.

This matter is being continued to November 12, 2026 at 8:30am to be heard by Judge Oakley who was the sitting judge during trial in this matter.

TENTATIVE RULING #12: THIS MATTER IS BEING CONTINUED TO NOVEMBER 12, 2026 AT 8:30AM TO BE HEARD BY JUDGE OAKLEY WHO WAS THE SITTING JUDGE DURING TRIAL IN THIS MATTER.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON

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**THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE
8.05.07.**

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13. JOY VELLA V. WILLIAM VELLA

23FL0247

Petitioner filed a Request for Order (RFO) on May 21, 2026, seeking post-judgment modification of both child and permanent spousal support. Petitioner concurrently filed an Income and Expense Declaration. Respondent was personally served in accordance with Family Code section 215 on June 1, 2026.

Respondent filed a Responsive Declaration on September 9, 2026, along with an Income and Expense Declaration. Both were served on September 9, 2026. Respondent objects to the requested modifications.

The court has read and considered the filings as outlined above. The court finds it must take testimony on the issue of the modification of child support as there is a factual dispute as to the time share. Parties are ordered to appear to select Mandatory Settlement Conference (MSC) and trial dates.

As to the post-judgment request for spousal support orders, generally speaking, the court is required to take evidence on, and address the Family Code § 4320 factors when ruling on a post-judgment request for modification of spousal support. However, as a threshold issue to that, the moving party must show that there has been a material change in circumstances to warrant a change in support. In re Marriage of Kuppinger, 48 Cal. App. 3d 628 (1975). Here, after reviewing the filings of the parties as outlined above the court finds that Petitioner has failed to establish any change in circumstances which would warrant a change to spousal support. The request is therefore denied.

All prior orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #13: PARTIES ARE ORDERED TO APPEAR TO SELECT MANDATORY SETTLEMENT CONFERENCE (MSC) AND TRIAL DATES ON THE REQUEST TO MODIFY CHILD SUPPORT.

AS TO THE POST-JUDGMENT REQUEST FOR SPOUSAL SUPPORT ORDERS, PETITIONER HAS FAILED TO ESTABLISH ANY CHANGE IN CIRCUMSTANCES WHICH WOULD WARRANT A CHANGE TO SPOUSAL SUPPORT. THE REQUEST IS THEREFORE DENIED.